

## Annotation Guidelines

You are tasked with evaluating law students' assessments of cases brought to the European Court of Human Rights (ECtHR). All cases are related to Article 10 of the European Convention on Human Rights (ECHR). All cases have been brought to the court and ruled on recently.

### Ideal Court Assessment Strategy

The court (ECtHR) follows a 4-step reasoning strategy, step by step:

1. "Existence of an interference": Assess the facts of the case to determine whether there has been an interference with the applicant's freedom of expression. If you find no interference, predict that there has been no violation of the article and skip the rest of the steps; if you find that there has been an interference, proceed to step 2.
2. "Lawfulness of the interference": Assess if the interference is lawful. Assess whether the interference has a basis in the domestic law of the member state. If you find that the interference lacks a basis in the domestic law of the member state, predict that there has been a violation of the article and skip the rest of the steps; otherwise, proceed to step 3.
3. "Legitimate aims of the interference": Assess if the interference is legitimate. Assess if the interference was supported by a need to protect one of the following legitimate aims: (i) national security, (ii) territorial integrity, (iii) public safety, (iv) the prevention of disorder or crime, (v) the protection of health or morals, (vi) the protection of the reputation or rights of others, (vii) preventing the disclosure of information received in confidence, or (viii) maintaining the authority and impartiality of the judiciary. If you find that the interference does not support one of the legitimate aims, predict that there has been a violation of the article, and skip the next step; otherwise, proceed to step 4.
4. "Necessary in a democratic society": Assess if the interference is necessary in a democratic society. Assess: (a) whether there is a pressing social need for interference; (b) whether the interference uses the least restrictive measure possible to protect the legitimate interest identified in the third step, and (c) whether there are relevant and sufficient reasons to support the interference convincingly. If you find that the interference can be defended as necessary in a democratic society, then predict that there has not been a violation of the article; if you find that the interference cannot be so defended, predict that there has been no violation.

## Annotation Tasks Instructions

The Excel spreadsheet provided includes 30 rows, each one presenting an ECtHR case related to Article 10. Each row includes among other information, a summary of the case facts (see "case\_facts") and the court's assessment (see "court\_assessment") as presented in the court's judgment.

### Task 1 (Reading the case & Accounting the court's reasoning steps)

- You first have to read the facts of the case and the court's assessment from the relevant columns, as background to inform your latter evaluation.
- You have to mark in the Excel columns ("Step\_1 Occurrence", "Step\_2 Occurrence", "Step\_3 Occurrence", "Step\_4 Occurrence") whether the court performed all the independent steps (1-4) as presented in the "Ideal Court Assessment Strategy" above. You should mark "yes" in the field if the step occurs in the court's assessment, and "no" if the step was omitted. Note: The court may omit some later steps, if a prior step already substantiated the existence of a violation.

### Task 2 (Evaluating the students' assessments)

- You are also provided with the assessment from two law students for the very same case (see columns "Student A response" and "Student B response"). You have to evaluate the quality of the students' assessments in light of ECtHR standards as set out in its jurisprudence. The students' assessments should follow the aforementioned assessment strategy ("Ideal Court Assessment Strategy" above) step-by-step. Note: The students had to provide their assessment as a sequence of titled paragraphs, NOT necessarily following the same structure (presented above).
- Evaluation Criteria (Marking):
  - "Step Occurrence": For each of the 4 steps of the ideal assessment (reasoning) strategy (presented above), mark in the respective column ("A\_Step\_1 Occurrence", etc.), if the step occurs—is present—in the student's response. This is a binary mark ("yes" or "no"). Note: It is totally fine if the student performed the step as part of a paragraph, including more steps or additional redundant information.
  - "Step Comprehensiveness": For each of the 4 steps of the ideal assessment (reasoning) strategy (presented above), mark the step comprehensiveness in a Likert-scale (1-5, where 5 is greater/better than 1) in light of how the step is performed by the court's assessment ("court\_assessment" field). If the expected step did not occur in the student's assessment, the score is 0. Note: If, for a given step, you

score comprehensiveness for student A as 1 and for student B as 4, this implies that student B's step description was more comprehensive.

- "Overall Conciseness": Mark whether the student's overall assessment is concise, i.e., whether there is no irrelevant (redundant) information in each student's response, on a Likert scale (1-5, where 5 is greater/better than 1).
- "Additional Comments": After completing the above marking, you can also report additional comments in the fields ("A\_Comments" and "B\_Comments"), whether you think there is something noteworthy and/or interesting related to the students' assessment.